Ferrero India Private Limited (IMSOFER DIVISION) 8th Floor, Tower–3,World Trade Centre, Survey NO.1,Kharadi,Pune 411014, Maharashtra, India. Phone:+91 20 67196000 Fax:+91 20 67196050
VAT Reg NO: 27465208692V Dt.06.08.2008
CST Reg NO: 27465208692C Dt.06.08.2008 PAN No:AAACF8110B
ECC No: AAACF8110BEM001 GSTIN: 27AAACF8110B1Z8

Purchase order

PO number/date/Doc.Type/Description
7008012159 11.01.2019 Z108 Technical Materials

Ms NIHVA TECHNOLOGIES PVT LTD
Sameer Plaza, First Floor, G-Block
411019 Thermax Chowk, Pune
Teleph./Fax: +91 +91-8551091333 / +91-8551091333
Your vendor number with us: 123352
GSTIN: 27AAECN0437H1ZM

Buyer: Minal SURVE
Telephone: 02112 662100
E-mail: DLL-IND67-Technical-Procurement@owa.ferrero.com
Purchasing Reference: Narayan Jahagirdar
02112-662200 narayan.jahagirdar@ferrero.com
Preq number - Requisitioner
292323610 / MORE Suraj

Please deliver to:
Ferrero India Pvt Ltd
Plot No. F-13 & G10/1, M.I.D.C.
413133 BARAMATI, DIST -PUNE
INDIA
Delivery date: 30.04.2019

Terms of delivery:
Delivered at Baramati Plant
Terms of payment: See notes

Currency: INR

Invoice must contain the Ferrero order number

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1. Refer your quotation no. SQT/18-19/1082R dated 11-1-2019 and subsequent discussion on it.
2. Invoicing & delivery address should be strictly as:
Ferrero India Pvt. ltd.
F-13 MIDC, Baramati-413133, Dist.: Pune.
3. Consignment and documents to be addressed To: Technical Stores Department. Contact number 02112-662230. Consignment should contain original invoice and delivery Note else delivery will be rejected. While sending by courier required one copy of invoice with courier docket for gate entry (Outside packing).
4. Delivery: Partial delivery will not be accepted unless pre approval from Ferrero.
5. Prices: F.O.R our factory Baramati inclusive of Packing and Forwarding, freight charges & transit insurance.
6. Payment: 30 % Advance Againt proforma invoice and ABG , 50% Againt Delivery , 20 % after successful Installation and Commissioning .

All advance / regular/retention payment, Bank Guarantee, Taxation related queries to be first addressed To Mr. Dattatray Nalawade Email dattatray.nalawade@ferrero.com Tel 02112-662200. Next escalation to Mrs Arti Changedia (Arti.CHANGEDIA@ferrero.com)
7. Validity for PO is 6 months. If you want to supply after this, please obtain consent of Ferrero India.
8. Delivery strictly as per schedule.
9. Penalty @1% per week to a maximum of 5% is applicable after delivery date.
10. All Installation and Commissioning is included in it .

Item	Material	Description	Order qty.	Unit	Price/Unit	Net Value
00010		*Inflatable Dock Shelter*	*20.000*	*ST*		

Price schema	Price/Unit	Rate	Rate/Unit	Units	Condition Value
Gross Price	420,000.00	INR	1	ST	8,400,000.00
GST					1,512,000.00

Continue

FERRERO INDIA PVT LTD (IMSOFER DIVISION) **Ms NIHVA TECHNOLOGIES PVT LTD**

.....	..... Date: .....

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Item	Material	Description	Order qty.	Unit	Price/Unit	Net Value
	DS6070B (Make : Assa Abloy_Crawford_Inflatable Dock Shelter Imported from Europe) Size:(W) 3600 mm X (H) 3755 mm					
				Total net value INR:		8,400,000.00

Continue

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Release strategy	Date	14.01.2019	14.01.2019	14.01.2019
	Electronically Signed			
IY-3E	by	N.JAHAGIRDAR	N.Mogavero	K.PATEL

TERMS & CONDITIONS TO THE PURCHASE ORDER

1. Object
1.1. These terms and conditions ("Terms") shall govern the related purchase order ("Purchase Order") for the purpose of the supply from supplier ("Supplier") to Ferrero S.P.A. ("Ferrero" or "Purchaser") of the raw materials, packaging materials or semi-finished goods ("Goods") as better described therein. The Supplier and Ferrero are individually referred to as the ("Party") and collectively to as the ("Parties").
1.2. No terms or conditions other than those agreed pursuant to clause 1.3 endorsed upon, delivered with or contained in the Supplier's quotation, or in the acknowledgement of receipt or in the acceptance of a Purchase Order, shall form part of these Terms and the Supplier waives any right which it otherwise might have to rely on such terms and conditions.
1.3. Should the Parties intend to apply to these Terms any terms which derogate from or are in addition to those stated herein ("Special Terms"), they have to include such Special Terms in the Purchase Order or in a separate written document, making express reference to their intention to apply such Special Terms in addition or derogation of what stated under the Purchase Order.

2. Delivery
2.1. The quantities of Goods to be delivered, the dates and the places of such deliveries, to be performed under any Purchase Order may be requested by the Ferrero to the Supplier from time to time under any specific call off ("Call-Off") through the way and format in use by Ferrero at that time, as well as according to the planning methodology agreed by the Parties.
2.2. Time for delivery of the Goods pursuant to the Purchase Order and/or the Call off is of the essence. The Supplier shall promptly notify Ferrero of any delay which may occur with respect to the delivery and shall endeavor to take any corrective actions necessary with a view to minimizing the consequences of its failure. The Supplier, under each delivery, shall provide Ferrero with all the transportation, customs, health and analysis documents and declaration of conformity, in compliance with any applicable law, regulation, statute, code, rule, decree or ordinance in respect of the performance of the Supplier's obligations under the Purchase Order ("Regulatory Requirement"), as well as in compliance with any specific documents required by Ferrero from time to time.
2.3. Unless otherwise set forth under the Purchase Order, title and risk on the Goods shall pass from the Supplier to Ferrero in accordance with the delivery terms as per Incoterms 2010 indicated in the Purchase Order.
2.4. Should the Supplier fail to deliver the Goods in compliance with the time of delivery and/or the quantity agreed, Ferrero may, at its own discretion and without prejudice to any additional rights: (i) require the immediate fulfillment of the Purchase Order, in whole or in part; and/or (ii) procure elsewhere at any time the Goods at Suppliers cost and risk, with the sole obligation of notifying the Supplier. Ferrero is entitled to reject the Goods accompanied by a delivery note, should such a note not comply with any Regulatory Requirement, as well as missing the proper indication of the date and number of the Purchase Order.

3. Non Conformity
In case of Goods' defectiveness or non-conformity in respect to these Terms, any Specifications (as defined below in clause 4(b)), Regulatory Requirements, as well as any other provision of the Purchase Order (hereinafter referred to as "Defectiveness" or "Non-Conformity(ies)"), the Ferrero will, upon written notice non-exceeding the 20 (twenty) calendar days from the discovery, require the Supplier to promptly and without delay remedy the ascertained Non-Conformity at Supplier's exclusive costs and expenses. Should the Supplier fail to remedy such ascertained Non-Conformity, then Ferrero shall be entitled to directly remedy such Non-Conformities and debit to the Supplier any and all the relevant costs. In the above circumstances the Supplier shall: (i) bear any costs for repair or replacement of the Goods in such a way to be in compliance with the Supply Agreement and/or Regulatory Requirements; and (ii) reimburse any further cost, charge or expense incurred by Ferrero in relation to the repair, modification or replacement of the Goods affected by the Non-Conformity. All the above, without prejudice to further rights of Ferrero granted by any applicable Regulatory Requirement. Should the Supplier be aware of any Defectiveness, Non-Conformity or risks of Defectiveness or Non-Conformity that may compromise or affect the quality, reliability, or safety of (i) the Goods and/or (ii) Ferrero's product into which the Goods, or part thereof, are incorporated or fitted, it shall immediately notify, without delay, Ferrero providing any and all support to detect the Defectiveness, Non-Conformity or risk of Defectiveness or Non-Conformity, repair or replace the Goodss without any costs or charges for Ferrero, as well as eliminate any risk and/or to compensate third parties for any damages arising out or in connection therewith.

4. Representations and Warranties
The Supplier hereby warrants and represents that:
(a) the Goods (i) will be free from any defect in material and workmanship; (ii) will be fit for its intended purpose of human consumption; and (iii) will be free and clear of any security interests, liens, encumbrances, claims and charges or liabilities whatsoever;
(b) by performing any Purchase Order, the Supplier warrants and acknowledges that he has assessed and accepted any technical, technological quality and reliability specifications of the Goods agreed by the Parties and/or set forth under the Raw Material/ Packaging Materials Qualification Specifications and/or Raw Material/Packaging Materials Specification Sheet, these latter referred to under the applicable Purchase Order ("Specifications").

5. Pricing & Invoicing
5.1. Price of the Goods is set out under the Purchase Order. Supplier's invoice shall be in compliance with any Regulatory Requirement, and shall contain any information necessary and/or requested by Ferrero in order to check the Goods.
5.2. The payment shall be made in the currency specified in the Order and shall not constitute or be deemed as acceptance of Ferrero of the Goods.
5.3. Ferrero shall be entitled to set off any amount due at any time to the Supplier against any amount due, for whichever reasons, by the Supplier to Ferrero.

6. No Assignment
6.1. The Supplier shall not sell, transfer or assign to any third party any credit the Supplier may have toward Ferrero for the payment of any Good to be supplied to Ferrero under any Purchase Order.

Continue

FERRERO INDIA PVT LTD (IMSOFER DIVISION) **Ms NIHVA TECHNOLOGIES PVT LTD**

.....	..... Date: .....

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6.2. The Supplier shall not assign and/or subcontract any Purchase Order, or any part thereof, and/or any rights or obligations thereunder, save expressly authorised in writing and in advance by Ferrero. In any event, Supplier shall remain responsible for the performance of every Purchase Order, and it shall grant Ferrero to apply to sub-contractors contractual terms and condition coherent and in compliance with the Terms and the Purchase Order.
6.3. Ferrero may, with prior written notice to Supplier, at any time, assign any Purchase Order, in full or in part to any of its Affiliates. For the purpose of these Terms “Affiliates” means with respect to a Party, any other entity directly or indirectly owing or controlling such Party, owned or controlled by, or under the common control with such Party.

7. Indemnity & Insurance Coverage
7.1. In accordance with any applicable Regulatory Requirement, the Supplier shall keep Ferrero indemnified in full against all liabilities, loss, damages, injury, costs and expenses awarded against or incurred or paid by Ferrero as a result of Defectiveness.
7.2. To such purposes and thereafter in accordance with any applicable Regulatory Requirement, the Supplier shall maintain, in respect of every Purchase Order, all necessary insurance coverage, including product liability insurance against any risk of safety defects related to the Goods and providing Ferrero with evidence of the existence of such policies of insurance upon request of this latter from time to time.
8. Confidentiality
8.1 Without prejudice to the Special Terms agreed between the Parties separately, the Supplier shall treat as confidential all non-public information, particularly technical and business information, whether written or oral, that it receives from Ferrero relating to any Purchase Order to which it gains access or which it otherwise obtains during the negotiation or execution of any Purchase Order. The Supplier shall use such confidential information only for the purpose of Purchase Order(s) and shall give access only to its employees who need to have access to such Confidential Information in order to carry out the purposes of any Purchase Order.
8.2 Upon’s request, all the documentation containing confidential information disclosed by Ferrero to the Supplier shall be returned to Ferrero or destroyed.
8.3 The non-disclosure obligations as per clause 8.1 and 8.2 above shall survive the termination of these Terms.

9. Termination by Material Default
Ferrero shall have the right to terminate the Purchase Order if the Supplier commits a material default of any of its undertakings under such Terms, provided that prior to termination hereof Ferrero shall notify the Supplier of the default in writing, stating a reasonable time, in any event not exceeding 30 (thirty) calendar days from the date the notice is received, within which the Supplier shall have to remedy said default. Ferrero is entitled to terminate immediately these Terms by giving written notice to the Supplier in case of a material breach of the Ferrero Code of Business Conduct as per clause

10. Force Majeure
10.1. In the event that either Party is prevented from performing all or part of its obligations under these Terms and/or any Purchase Order by an unforeseeable event which is beyond the control of such Party making it impossible to perform its obligations hereunder (hereinafter referred to as “Force Majeure”), such as, by way of example, war, revolution, embargo, riot, civil disorder, sabotage, accident, act of God, or order or act of an authority (including, without limitation, administrative action, rule, regulation or legislation), such Party shall not be liable for the non-performance of such obligations during the continuance of the Force Majeure event and for all consequences caused by and resulting from such force majeure event.
10.2. The suspension of the performance of any Purchase Order due to a force majeure event shall be limited to the period of time during which the effects of the force majeure event continue. The Parties hereto shall undertake their best efforts in order to minimize the consequences relating to such Force Majeure event and especially of the delays incurred.

11. Change of Control
11.1 “Change of Control” means any of the following:
(i) Transfer or allotments of shares of a company giving a new person the direct or indirect holding of a fraction of the capital that gives to the new person a majority of the voting rights at the general meeting of such company;
(ii) When a new person holds directly or indirectly a majority of the voting rights in a company by virtue of an agreement entered into with other partners or shareholders;
(iii) When a new person becomes entitled to determine directly or indirectly the decisions taken at a company's general meetings through the voting rights it holds; or
(iv) When a new person becomes directly or indirectly entitled to appoint or dismiss the majority of the members of a company's administrative, management or supervisory.
11.2 In case of Change of Control of the Supplier, or whether the Supplier is subject to reorganization, amalgamations, or other restructuring operations (to such purpose, the Supplier shall inform Ferrero forthwith of any fact or circumstance related to any variation of its share capital relevant and/or any modification of its corporate structure), Ferrero is entitled to terminate any on-going Purchase Order, upon 30 (thirty) calendar days prior written notice.

12. Miscellaneous
12.1. Applicable Law and Settlement of Disputes
These Terms and any Purchase Order shall be subject to and construed according to the substantive Italian law.
Any disputes arising under or in connection with these Terms and/or any Purchase Order shall be finally settled by the competent of Court of Turin.
12.2. Remedies
Each right or remedy of Ferrero under these Terms and/or any Purchase Order is without prejudice to any other legal remedy of Ferrero whether under this Term and/or the Purchase Order or not. All rights and remedies of the Parties, or either of them, hereunder and under any Purchase Order shall be in addition to all other legal rights and remedies belonging to them and the same shall be deemed to be cumulative and not alternative to such legal rights and remedies
12.3. No Waiver of Rights
Any Ferrero’s indulgence on a temporary basis towards Supplier in respect of the performance of Supplier, or failure of Ferrero to enforce any of the provisions of these Terms and/or any Purchase Order, shall not be construed as a waiver or otherwise prejudice any of Ferrero’s rights under these Terms and/or that or any other Purchase Order.
12.4. Severability
The inoperativeness of one or several provisions of the Terms and/or any Purchase Order does not affect the validity of the remaining provisions. In such case a provision is applicable which meets best legal and economic aim of the inoperative provision. This does not apply in case complying with these Terms and/or the Purchase Order would constitute unreasonable hardship for one or both of the Parties.

Continue

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12.5. Independent Supplier
The Supplier represents and warrants that the Supplier, as well as all of its employees and permitted sub-Suppliers (collectively "Personnel") are, under the performance of every Purchase Order, independent operator(s) and not employees of Ferrero. The Supplier shall be entirely and solely responsible for its acts and the acts of the Personnel, including, but not limited to, for (i) the payment of any and all compensation and benefits due to the Personnel and (ii) reporting, withholding and remitting to any applicable governmental entity all income and employment taxes attributable to such compensation and benefits. When on facilities or premises of Ferrero, all Personnel shall comply with Ferrero's applicable premises policies and procedures, as communicated by Ferrero to the Supplier from time to time.
12.6. Entire Agreement
The Purchase Order, incorporating the Terms and including the appendix(s) hereto, represents the entire agreement between the Parties on the subject matter hereof and supersedes all prior discussions, agreements and understandings of every kind and nature between them. No modification of this Purchas Order, the Terms and its appendix(s) will be effective unless in writing and signed by Parties, as well as any cost or price not therein provided will have to be expressly agreed/approved in writing and signed by both Parties.
12.7. Ferrero Code of Business Conduct
The Supplier hereby declares to know and accept and agrees to comply with the Ferrero Code of Business Conduct which shall apply to the Purchase Order. The Supplier represents that the Goods to be supplied have been obtained and transformed in full compliance with any Regulatory Requirement, including but not limited to any applicable regulatory requirements in terms of prohibition of using child labour, starting with its worst forms, and of all forms of slavery, human trafficking, forced or compulsory labour and prison labour in accordance with the International Labour Conventions (ILO), UN Conventions and the Human Rights Declarations.
12.8. Inspection
During the performance of the Purchase Order by the Supplier, Ferrero shall have the right, to access, directly or through its authorised representatives, the Supplier's premises, at its own expenses and during normal business hours, to verify and assess that the Supplier properly complies with any and all its obligations, as stated in this Terms and in the relevant Purchase Order.

Ferrero Code of Business Conduct is available to download at: http://www.ferrero.com

If the Supplier is an Italian Company, the Supplier hereby expressly approve and agree, in accordance with and pursuant to Article 1341 of the Italian civil code, the Articles hereinafter set forth:
1.2, 2.2, 2.3, 3, 4, 5.1, 5.2, 5.3, 8, 6.2, 7.1, 9, 12.2, 12.7

FERRERO INDIA PVT LTD (IMSOFER DIVISION) **Ms NIHVA TECHNOLOGIES PVT LTD**

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